# Marbury v. Madison

*U.S. Supreme Court · 5 U.S. 137 · 1803 · Chief Justice John Marshall (majority)*

*Source: Oyez Project, oyez.org/cases/1789-1850/5us137; Cornell Legal Information Institute, law.cornell.edu*

When Federalist John Adams lost the 1800 election he packed the courts with last-minute appointments. William Marbury was one of those 'midnight judges.' When Jefferson's new Secretary of State, James Madison, refused to deliver Marbury's commission, Marbury sued. Chief Justice Marshall — a Federalist — sided politically with Marbury but ruled the Court could not order delivery, because the law Marbury sued under was itself unconstitutional. In doing so, Marshall established the principle of judicial review.

*Connect: The Marshall Court cases (McCulloch, Gibbons) built on the debate from Class 6 over broad vs. strict construction. Which side won at the Court?*

## Key Passages

### It is emphatically the province

> It is emphatically the province and duty of the judicial department to say what the law is. Those who apply the rule to particular cases, must of necessity expound and interpret that rule.

### Hierarchy of law

> If two laws conflict with each other, the courts must decide on the operation of each. … If, then, the courts are to regard the constitution, and the constitution is superior to any ordinary act of the legislature, the constitution, and not such ordinary act, must govern the case to which they both apply.

### Holding

> A law repugnant to the Constitution is void; and … courts, as well as other departments, are bound by that instrument.

## HIPP Analysis

*Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.*

| HIPP Element | Your Analysis |
|---|---|
| ***Historical Situation*** *What was happening when this was written?* | The 'Revolution of 1800': Federalist John Adams lost to Jefferson and filled the courts with last-minute 'midnight judge' appointments; Madison withheld Marbury's commission. |
| ***Intended Audience*** *Who was the source written for?* | The parties to the case, Congress, and the Jefferson administration, and through them the legal and political community. |
| ***Point of View*** *Whose perspective? Whose is missing?* | Chief Justice John Marshall, a Federalist and Adams appointee, who wanted to strengthen the judiciary without starting a fight with Jefferson that the Court would lose. |
| ***Purpose*** *What did the author want to accomplish?* | |

## Analysis Prompts

**1.** LEQ Thesis (1 pt): Write a defensible thesis evaluating the political vs. constitutional significance of Marbury v. Madison.

**2.** Explain how Marshall managed a short-term political loss while securing a long-term institutional win.

**3.** How did judicial review reshape the balance of powers established in 1787?